

LATEST NEWS

Flock activated camera during 'pause,' chief says, pushing city to axe contract



BY JAIME ADAME
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QuickTake:

Eugene Police Chief Chris Skinner said he learned that a license-plate reader camera started collecting data after a maintenance call. A Flock spokesperson said it was an oversight.



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About 12 Minutes

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Eugene Police Chief Chris Skinner Tuesday, Dec. 9, said he became aware last week that a license-plate recognition camera was operating despite a citywide pause on use of the technology, leading him to end a contract with vendor Flock Safety.

The department on [Friday evening announced an immediate end](#) to its partnership with the Atlanta-based company.

In May, Flock Safety began installation of some 57 pole-mounted cameras on city streets. But after citizens voiced opposition to the technology, the city in mid-October paused use of the cameras.

“The cameras had been turned off. We had a camera that was inadvertently turned back on for a short period of time and collect some data,” Skinner said at a news conference Tuesday. “That was something we were

hoping wouldn't happen, and it did happen."

Skinner said he had no knowledge of anyone accessing information from when the camera briefly resumed operating.

"In this particular case, listening to our community in our unique set of circumstances here, there was a vulnerability that took me to a point where I needed to seriously consider ending the relationship, and I chose to do that," Skinner said.

Eugene signed a \$342,000, two-year contract with Flock Safety, with money for the contract coming from a state grant. It's unclear if any sort of prorated refund from Flock Safety might be paid back to the city.

Springfield police also on Friday evening announced they were cutting ties to Flock Safety, though Skinner on Tuesday and Springfield Chief Jami Resch in an earlier written statement praised the underlying automated license-plate recognition technology, also known as ALPR.

Skinner said "it's important for me to let everyone know that ALPR technology is an important piece of technology in crime-fighting."

Police bypassed any public presentation about the technology and did not seek approval from the Eugene City Council before installation began in May.

Asked if he regretted not involving the City Council in the decision to install the technology, Skinner said he did not.

"If I had to consult with my City Council every single time I needed to make a decision, we'd get nowhere," Skinner said, defending the use of ALPR technology.

Eugene Police Chief Chris Skinner spoke Tuesday, Dec. 9 about a decision to end a contract with Flock Safety for automated license-plate recognition technology. Credit: Jaime Adame / Lookout Eugene-Springfield

Without giving a timeline, Skinner said he'd like to deliberate on "maybe what it looks like to bring a proposal back to the right decision-makers, knowing that this has got a ton of public interest."

"I think the thought of abandoning the technology altogether into the future is like putting a big flashing sign on this city that we're open for criminal business," Skinner said.

'Just really bizarre'

A community member brought forward information about a camera having been turned on, Skinner said, but he did not name the person.

Ky Fireside provided to Lookout Eugene-Springfield an email they sent Wednesday, Dec. 3, to Eugene's mayor and City Council, with the subject line: Flock reactivated. Fireside, who uses they/them pronouns, is an organizer with Eyes Off Eugene, a citizens group formed to oppose use of the technology.

The email referred to an online data portal established by Flock Safety for Eugene police. The online site, referred to as a "transparency portal" by the company, shows data including "unique vehicles detected in the last 30 days."

The Dec. 3 email from Fireside noted that, given the mid-October pause, "we should be seeing zero vehicles detected in the last 30 days on the transparency portal. However, nearly 8,500 UNIQUE vehicles have been detected by Eugene's Flock devices in the last 30 days."

In a phone interview, Fireside said officials forwarded the email to the city's police auditor. Fireside said they then met with the auditor on Friday afternoon to open an investigation, which was first reported on Monday by KLCC.

"If the reason [for the contract cancellation] truly is just that a camera got reactivated, then I'm fairly confident that that's because of the investigation that I initiated," Fireside said.

Fireside said "the whole thing was just really bizarre" and pointed out that Nov. 8, Springfield police announced a similar instance of a camera being turned on despite a citywide pause on use of the technology.

Springfield had some 25 Flock Safety cameras installed in September, but at the time said they would not be turned on for use in police investigations pending a broader community conversation.

“It just, I don’t know, just seems a little bit weird to me,” Fireside said, adding that, “community concerns being what they are, right now, I would like really clear assurance that an outside agency did not access the data that was collected while that camera was on.”

At public meetings in both Eugene and Springfield, citizens — including Fireside — voiced strong opposition to the Flock cameras. Many expressed concerns about the cameras possibly being used to track vulnerable populations in federal immigration enforcement operations, for example, or about privacy rights.

“I consider it mass surveillance, and I consider it a violation of our constitutional rights,” Fireside said Tuesday.

People involved in opposing the technology have expressed a mixture of emotions after Friday’s announcement, Fireside said.

“It’s validating to finally hear the police department say, ‘Oh, by the way, there are some really bad vulnerabilities with this product.’ But that is coupled with, ‘This should have never happened in the first place,’” Fireside said.

Flock Safety reacts

Holly Beilin, a Flock Safety spokesperson, said in an interview Tuesday the company effectively turned off the cameras when Eugene requested they be paused.

“They were not collecting images, and we did that as soon as the pause was asked for,” Beilin said.

But a component of the technology that’s separate from the camera — she called it a “compute box” — continues to operate a maintenance software program, she said.

In Eugene, a maintenance work order was generated, Beilin said. She said such work orders arise after perhaps physical damage to a camera from cold or impact from an object, like a rock.

“Automatically within the back end of our system, a maintenance tech actually was dispatched to go fix the camera, because that would be the normal order of operations in this,” Beilin said.

Beilin said that requests to pause the technology have been rare, so the company at the time “had not implemented a process where we sort of like manually turned off maintenance work orders.”

This resulted in the camera turning back on, Beilin said, adding that she understood this happened with two cameras in Eugene. Skinner, in the news conference Tuesday, said he only knew of the one instance that he became aware of last week.

Beilin said that “as soon as we discovered that the maintenance had been done on the cameras and had, as a result, turned the cameras back on, we turned them off.”

The company has since changed its protocols, Beilin said. Now, “if a pause is requested, we basically block that maintenance request in the back end of the system in order to ensure this doesn’t happen,” she said.

Beilin said Tuesday the company was disappointed with the decisions by Eugene and Springfield to cancel their contracts.

“We were really proud to see that both Eugene and Springfield police had already seen success fighting crime with the Flock Safety system. They had solved a number of cases, and the community had seen positive effects. And so this is, of course, a disappointing outcome,” Beilin said.

Costs

Springfield police previously said the cost of the 25 cameras in that city would be [\\$77,000 per year](#).

Both Eugene and Springfield police departments said they paid for the Flock Safety technology using state grants to combat organized retail theft.

Skinner said he doesn’t know if the money spent is a total loss. City Manager Sarah Medary on Monday said the city is [seeking a prorated refund](#).

“We have certainly engaged with Flock to discuss what that might look like, since we’re not even a full year into a two-year contract with them,” Skinner said. “So there’s more to come on that.”

As far as effects on future grants from the state, Skinner said the Oregon Criminal Justice Commission no longer allows organized retail theft grant funds to be spent on technology, but that Eugene police recently received new grant funding that he said will be used to set up retail theft stings and pay for officer overtime.

Police make case for the technology

On Oct. 8, the Eugene City Council [voted unanimously](#) to pause use of the cameras.

Two days later, Skinner at a news conference credited the Flock Safety cameras with identifying a vehicle that ultimately led to the arrests of seven suspects in connection with an alleged burglary ring targeting Asian American households.

But the city council had not made time for further discussion of the cameras at any meetings since the Oct. 8 vote.

While a Eugene council work session on the topic of license-plate readers had been scheduled for February, Skinner said he now expects that session to be canceled.

Skinner said the technology was active from about June 15 through Oct. 15, and during that time the technology helped with investigations into homicide, theft, robbery and domestic violence, as well as stolen vehicles and organized retail theft.

With a majority of crimes involving a vehicle in some way, “there’s two things we ask as law enforcement professionals when we’re doing an investigation: suspect description and potential vehicle description,” Skinner said. “And so that’s why this technology is so important.”

The license-plate readers reduced the amount of time it took police to recover stolen vehicles.

“Maybe more importantly is the deterrence factor,” Skinner said Tuesday.

“When you have this kind of technology in your community, people that want to do bad things in our community know that and it has a tendency to have a chilling effect on criminal behavior,” Skinner said.

In a written statement Friday, Springfield Chief Jami Resch said the department “will be seeking ALPR options that meet our standards for data security, system transparency, and operational control.”

Fireside has announced their candidacy for [an open state representative position](#) to be decided in elections next year, and they have become active in two separate ALPR policy advisory groups – one at the state level, and the other involving local city councilors and others in Eugene and Springfield.

The cities “need some guardrails for when they are adopting new technology,” Fireside said.

Fate of cameras

Beilin with Flock Safety said she had no information about whether the company had received termination notices from Eugene or Springfield.

Medary, the Eugene city manager, said Monday that the city has requested removal of the hardware by Friday, Dec. 12.

While Springfield police on Friday said they would place coverings over their city’s cameras, Skinner said that would not occur in Eugene.

“Those cameras don’t belong to us by contract,” Skinner said.

“What I’m hoping to do is negotiate with Flock a good timeline when they bring technicians in and remove them. I think that’s what this community wants to see, is not a bunch of light poles with bagged cameras, they’d like to see the cameras removed, and so we’re working on that,” Skinner said.

